EXHIBIT INDEX

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Exhibits in support of: Memorandum in Support / Supplemental Memorandum (non-duplicated)

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EXHIBIT B

Hearing Tr. Feb 18, 2025, pp. 29-31 (911 obtainability: Dolan Law Firm May 12, 2021)

Case No.: CGC-25-631802
Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102
Document: ALL-HEARING-TRANScRIPTS-ROSARIO-AAA
Pages Included: Hearing Tr. pp. 29, 30, 31
Date: February 18, 2025
Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102
Relevance: Jessup testimony: Dolan Law Firm obtained 911 recording May 12, 2021; proves obtaina
Merits: Sworn testimony; supports fraud claim that CSAA could have obtained 911 before denial.

Limine number 17.

MR. SOBATI: Your Honor, in theory, chronologically as we just printed that, that should be somewhere down two-thirds of the way down that pile. I do apologize for that.

MR. ROSARIO: I believe -- I belive eliminating this would not only violate my 14th Amendment to the U.S. Constitution --

THE COURT: Wait a minute. Wait a minute. Before you say anything you have to give the other side the opportunity to review your opposition.

MR. ROSARIO: Okay.

THE COURT: Sir, do you have a copy for defense counsel, or can you identify it?

MS. NAVARATNASINGHAM: We located it, Your Honor.

MR. ROSARIO: In the meantime --

THE COURT: No, no, no. Let me keep you straight and narrow. First thing we're going to do is the opposition that you have to defendant's motion in limine number 17.

MR. ROSARIO: Okay.

THE COURT: You have various exhibits it looks like you want to have admitted in this case.

MR. ROSARIO: Yes, sir.

THE COURT: We are going to go through each and every one of them so we have a clear path with respect to each of these exhibits.

MR. ROSARIO: Okay.

THE COURT: So, Exhibit A is a receipt to the Dolan Law Firm that's dated 5-12-2021, for $70. And, attached to that is a document which is seven pages in total. So, there are six pages in addition to the receipt. The receipt is number 987352. And, I'll ask Defense to review these documents.

All right. The first question I have to Mr. Rosario is, some of these exhibits -- and, I will identify the fifth page of Exhibit A, the sixth page of Exhibit A -- have items that have been blacked out or redacted. Can you tell me who or what was involved with that redaction, or was that something that you just received and copied off the disc -- the discs that you have presented?

MR. ROSARIO: Those were redacted by the emergency services. I believe that there was personally identifying information of the individual or the phone numbers. You can see on F145631 they redacted the anonymous phone number, as well as they redacted the defendant's phone number at 145608. They approximately came in at about 22 seconds apart from each other.

THE COURT: All right. Is there any objection to having these admitted?

MS. NAVARATNASINGHAM: Yes, Your Honor. We -- first of all, this is the first -- I mean, we're just -- these were not produced in discovery -- during the regular course of discovery. It appears from this receipt that they were retained in 2021, so I'm not sure why we're seeing them here now.

EXHIBIT C

Hearing Tr. Feb 18, 2025, p. 140 (Defense subpoena to SFPD for 911/BWC/CAD)

Case No.: CGC-25-631802
Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102
Document: ALL-HEARING-TRANScRIPTS-ROSARIO-AAA
Pages Included: Hearing Tr. p. 140
Date: February 18, 2025
Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102
Relevance: Jessup: defense subpoenaed SFPD for 911/BWC/CAD; proves CSAA later sought same recor
Merits: Sworn testimony; implicit admission that 'concluded investigation' was incomplete.

MR. JESSUP: The 911 audio calls.

THE COURT: What else?

MR. JESSUP: And the CAD report. The CAD, C-A-D, report.

THE COURT: Right.

MR. JESSUP: Along with various other documents.

THE COURT: Okay.

MR. JESSUP: In addition, Your Honor, these documents were identified in discovery, and last February -- I have a copy of the Compaq subpoena issued by defense to San Francisco Police Department requesting all of this data.

THE COURT: Defense issued a subpoena?

MR. JESSUP: Correct. Now -- sorry, Your Honor.

THE COURT: Go ahead.

MR. JESSUP: Prior to current defense counsel's involvement, there was other -- another firm involved on behalf of the defense. All of that -- those items were served on them in the production for discovery as well at Mr. Rosario's deposition, in addition, utilized in the deposition of defendants. Whether or not prior counsel gave that to current counsel, I don't know.

THE COURT: Okay.

EXHIBIT D

RT Day 8, pp. 108-110 (Abdelhalim authenticates 911: 'Yes. That is my voice')

Case No.: CGC-25-631802
Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, April 17, 2025 Trial (RT Day 8), CGC-21-594102
Document: 2025-04-17 Trial Day 8.pdf
Pages Included: RT 8, pp. 108-110
Date: April 17, 2025
Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102
Relevance: Abdelhalim: 'Yes. That is my voice'; authenticates 911 admission; logical impossibil
Merits: Sworn trial testimony; Evid. Code 1220/1221.

MR. ROSARIO: For the sake of Your Honor, do any of the jury need to hear it a second time to clarify the audio that was spoken?

THE COURT: I don't believe so. Ask your next question, sir.

MR. ROSARIO: Q. Mr. Abdelhalim, before we listened to this audio clip, you stated that you did not make a 911 call, is that correct? Or you did make a 911 call, but then also stated that you never hit me with your vehicle?

You know, there was no contact with me with your vehicle.

THE COURT: Which question do you wish to put in? One question at a time.

MR. ROSARIO: Q. Mr. Abdelhalim, was that you on that phone call?

A. Yes.

Q. When you called in to the 911 operator, the caller, you, Mr. Abdelhalim, said that you were driving your van and there was a guy in front of you and that you barely hit him with anything but you are calling for him.

That was just played for you in the audio track. Are you still denying that that was you?

A. That is not correct.

Q. What is not correct, the audio?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous. I am not sure what the question is.

THE COURT: Why don't you rephrase another question?

MR. ROSARIO: Q. Mr. Abdelhalim, you said "I barely hit him with anything." That was heard clearly. That was you, correct? Yes or no?

A. Correct.

Q. I am sorry. What did you say?

A. Correct.

Q. That was you?

A. No.

MS. NAVARATNASINGHAM: Vague and ambiguous. I don't think my client is understanding the question.

MR. ROSARIO: Q. I asked you, Mr. Abdelhalim: You said in the audio and in the -- did he get transcript?

MR. SOBATI: Yes.

MR. ROSARIO: Q. Mr. Abdelhalim, can you see the transcript, the first entry?

It says: Caller. It says: Yes, yeah, there is -- I was -- I am driving a van and there is a guy going to cross, he crossed from me, and I barely hit him with anything but I am calling for him.

Was that your voice?

A. What do mean across from me? You was on sidewalk --

THE COURT: No, no, Mr. Abdelhalim. The question was: Was that your voice?

THE WITNESS: Yes. That is my voice.

THE COURT: That is all you have to answer.
THE WITNESS: Thank you.
THE COURT: Your next question.
MR. ROSARIO: Q. So before we listened to the audio, I had asked you clearly whether you had hit me and whether you had said you -- at the time -- I asked you -- did I ask you whether you had called 911 and you told them you hit me, and you said: No. You said: No -- clearly to all of us.
You said: I never told the 911 operator I hit you.
MS. NAVARATNASINGHAM: Objection, Your Honor, that misstates the question. I think he asked: Did you call him for me?
MR. ROSARIO: The Court Reporter can read that back.
THE COURT: No. We are not going to do that.
Your new question is: Based upon what was said earlier in your testimony, have you changed your opinion about having heard now the recording? Will you change your opinion about whether you struck or hit Mr. Rosario?
That's the question.
MR. ROSARIO: Yeah.
THE WITNESS: No.
MR. ROSARIO: Q. You did not change your story?
A. No.

EXHIBIT E

Abdelhalim Deposition pp. 4-5, 17-19 (Insured acknowledged collision; described incident)

Case No.: CGC-25-631802
Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Deposition of Subhi Abdelhalim (CSAA's insured), September 30, 2022, CGC-21-594102
Document: 034-ALL-DEPOSITIONS.pdf (Abdelhalim deposition, pp. 4-5, 17-19)
Pages Included: Deposition pp. 4-5, 17-19
Date: September 30, 2022
Court Registry: CGC-21-594102
Relevance: Insured acknowledged 'that collision'; described incident in detail; supports falsit
Merits: Sworn deposition; corroborates CSAA could have obtained insured's account before denial

BE IT REMEMBERED that, pursuant to Notice of Taking Deposition, and on Friday, September 30, 2022, commencing at 10:01 a.m. thereof, before me, ANGIE M. MATERAZZI, a Certified Shorthand Reporter, personally appeared remotely

SUBHI ABDELHALIM

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called as a witness by the Plaintiff, who, having been first duly sworn, was examined and testified as follows:

--oOo--

THE REPORTER: Do all counsel stipulate to the swearing in of the witness remotely?

MR. CHAMBERS: Yes.

MS. LEVY: Yes.

EXAMINATION BY MS. LEVY

Q. Good morning, sir. My name is Kim Levy. I represent the plaintiff in this matter, Franciscus Rosario. We are here today to talk about a collision that happened on February 4th, 2021.

Do you recall that collision?

A. Yes.

Q. Could you please state --

A. When you say "recall," do you mean, do you remember that collision, right?

Q. Yes. Yes. Correct.

A. Yes.

Q. Thank you for clarifying. So if I ask a question that's confusing or that you don't understand, please let me know, okay? I will rephrase the question for you, all right?

A. Yes.

Q. All right. I'm just going to go over some ground rules of how a deposition goes, to make things go smoothly and help us out -- get done as quickly as possible, okay?

A. Okay.

Q. So the first thing is, you've just taken an oath to tell the truth. Your testimony here today is under penalty of perjury. That's the same oath that you would take if you were testifying in a court of law to tell the truth.

Do you understand that?

A. Yes.

Q. Okay. You're doing a great job. In order to get an accurate record, we want to make sure that you wait until I'm finished talking, or your attorney is finished talking, before you begin your answer, okay? You're doing great so far and I'll try not to talk over you, as well, okay?

A. Okay.

right?

A. Correct.

Q. From Jessie alley, on the date of the collision, where -- where did you exit -- on what street did you exit?

A. You go -- alley is one way down from 6th. And from there, you see the Mint building, which is -- you know the Mint building, they used to make coin in?

Q. Yes.

A. You cannot go straight up. You have to turn left and there's a stop sign on Mission. And after that, you have to turn right on that alley to take Mission.

Q. Okay. And then once you're on Mission, where did you go?

A. From Mission, comes 5th Street.

Q. Okay. So which direction were you traveling on 5th Street before this collision?

A. When I get to Mission, I have to turn left on Mission, which is -- there's a light. I remember I have to wait on light. And slowly I went to 5th and Mission, south.

We find another street called Howard Street. After Howard --

Q. And from there, where did you go?

A. After I crossed Howard, which is -- I'm going south right now. After I cross Howard, I attempt to turn left on Tehama. It's street or alley. I just can't call it.

Q. So you were turning left from -- right before this collision happened, you were turning left from 5th Street onto Tehama?

A. Yes. After I cross Howard -- which is another street -- I go down a little bit farther and Tehama is on my left. So I slowed down and very, very, very slowly -- very slowly to go -- there's a lot of traffic, so I turn down Tehama, on my left.

Before I turn down, everything was clear, nobody on left, nobody on right, barely going 5 miles an hour. So when I finished turning, I complete my turn, completely. I don't hear anything bump into me or impact my car or anything, but I heard some screaming. I was going slowly. I heard some screaming. I look in my mirror, both sides, left or right, and I see somebody laying down on the sidewalk screaming.

I say, Be a good citizen, see what's going on. So I stop and I pulled my vehicle on the right to the street, so -- I don't want to block nobody's traffic. And I get out of my car to see who is that laying down and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.
5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.
11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.
20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.
25 Q. Okay. Thank you for all of that information.